

25PSCV02987 25PSCV02987

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Case Number: 25PSCV02987 Hearing Date: August 24, 2026 Dept: H

Diaz v. American

Honda Motor Co., Inc., et al.,

Case No. 25PSCV02987

ORDER ON MOTION

TO COMPEL FURTHER RESPONSES

Plaintiff

Danny Diaz's Motion for Order Compelling Further Responses to Requests for Production

[Set One] is GRANTED

in part (i.e., as to Nos. 16-19 & 22-25) and DENIED in part (i.e., as to

Nos. 72-78). Defendant is to provide further, Code-compliant responses to Nos. 16-19

& 22-25 within 20 days from the notice of the ruling.

Background

Plaintiff

Danny Diaz ("Plaintiff") alleges as follows:

On December 31, 2021, Plaintiff

entered into a warranty contract with American Honda Motor Company, Inc.

("Defendant") regarding a 2022 Honda Civic Sedan ("Vehicle"). The Vehicle

suffers from various defects to the electrical, steering, body, door, and

mechanical systems and has not been repaired after a reasonable number of attempts.

On

August 18, 2025, Plaintiff filed a complaint, asserting causes of action

against Defendant and Does 1-50 for: (1) Violation of subdivision (d) of Civil Code section 1793.2, (2) Violation of subdivision (b) of Civil Code section 1793.2, (3) Violation of subdivision (a)(3) of Civil Code section 1793.2, (4) Breach of Express Written Warranty – Civil Code sections 1791.2, subdivision (a), 1794, and (5) Breach of the Implied Warranty of Merchantability – Civil Code sections 1791.1 and 1794.

On

June 5, 2026, the Court granted a stipulated protective order.

On

June 17, 2026, the Court denied Plaintiff's request for an Informal Discovery Conference due to scheduling issues and advised Plaintiff to seek relief through filing a motion.

A

Post-Mediation Status Conference/Case Management Conference is set for August 24, 2026.

Legal

Standard

"[T]he

demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A

statement of compliance with the demand is incomplete.

(2) A

representation of inability to comply is inadequate, incomplete, or evasive.

(3) An

objection in the response is without merit or too general."

(Code

Civ. Proc., § 2031.310, subd. (a).)

The

motion must include a meet and confer declaration which "state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) "In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of

the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).)

A

motion to compel further responses to a demand for inspection or production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).)

If the moving party has shown good cause for the production of documents, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

Notice of the motion must be

provided “within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2031.310, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

“The

court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Discussion

Plaintiff

moves the court for an order compelling Defendant to provide further responses to Plaintiff’s Request for Production, Set No. One (“RFPs”) (i.e., Nos. 16-19, 22-25, and 72-78).

Plaintiff’s counsel Arbre Kornely (“Kornely”) represents as follows:

On

February 17, 2026, Plaintiff served the subject discovery. (Kornely Decl., ¶ 27, Exh. H.) Defendant requested an extension on March 12, 2026. (Id., ¶ 28, Exh. I.) Defendant served responses on April 22, 2026. (Id., ¶ 29, Exh. J.) On February 17,

2026, Plaintiff sent Defendant a meet and confer letter regarding the protocol for electronically stored information ("ESI"). (Id., ¶ 32, Exh. M.) On June 2, Plaintiff served its non-confidential document production and proposed Stipulation and Protective Order. (Id., ¶ 35, Exh. P.) On June 12, Plaintiff sent a meet and confer letter regarding Defendant's non-compliant discovery responses and deficient document production. (Id., ¶ 38, Exh. S.) The parties met and conferred multiple times regarding the discovery responses and eventually spoke on June 16 regarding narrowing the scope of the documents sought. (Id., ¶¶ 39-43, Exhs. T-X.) The parties engaged in mediation on July 16, but a settlement was not reached. (Id., ¶ 45.) Counsel alleges that Defendant has not supplemented its responses or produced certain documents as of this motion's filing. (Id., ¶¶ 47-48.)

Defendant's counsel states that the parties reached an agreement to limit the scope of the discovery dispute to the identified RFPs as stated in the Court's standing discovery Order for Song-Beverly matters. (Galstyan Decl., ¶ 9.)

RFP No.

16 asks Defendant to produce all documents concerning or relating to any internal analysis or investigation by it or on its behalf regarding body and trim system defects [FN1] in vehicles of the same year, make, and model as the Vehicle.

RFP No.

17 asks Defendant to produce all documents concerning or relating to any communication it has had regarding body and trim system defects in vehicles of the same year, make, and model as the Vehicle. RFP No. 18 seeks all documents concerning or relating to any decision to issue any notices, letters, campaigns, warranty extensions, technical service bulletins, and recalls concerning the body and trim system defects in vehicles of the same year, make, and model as the Vehicle. RFP No. 19 seeks all documents, including any databases, concerning customer complaints, claims, reported failures, and warranty claims related to body and trim system defects.

RFP Nos.

22-25 seek the same information as RFP Nos. 16-19 but as to the Chassis Defect. [FN2]

RFP No.

72 seeks all documents about Technical Service Bulletin ("TSB") 21-063,

including any prior or subsequent versions, and any documents related to the decision to issue or modify it. RFP No. 73-78 seeks the same information as No. 72, but as to Safety Recall Campaign 23-085, TSB 23-089, TSB 24-095, TSB 23-037, TSB 23-094, and Safety Recall 24-119.

The aforementioned requests seek documents regarding internal investigations, communications, notices, letters, campaigns, warranty extensions, TSBs, and recalls regarding the defined body and trim system and chassis defects in vehicles of the same year, make, and model as the Vehicle. The requests also seek complaints and warranty claims associated with other 2022 Honda Civic sedans.

Defendant has objected to the requests on the grounds that they are vague, ambiguous, overbroad, and asking for irrelevant information. Defendant has further objected to the defined defect terms as vague, ambiguous, overbroad, and including symptoms that were not alleged as to the Vehicle. Still, Defendant has agreed to the requested production in part, stating that it would produce Service Bulletin Nos. 21-063, 23-085, 23-089, 24-095, 23-094, and 24-119.

The Court determines that RFPs No. 16-19 and 22-25 are overbroad and repetitive. First, the definitions of the terms “body and trim systems defect” and “chassis defect” are unreasonably broad and include vague and indeterminate symptoms. The Court limits the definitions to only the symptoms/issues that were associated with the Vehicle and identified in the Vehicle’s repair history. Second, both definitions include the all-encompassing catchall “and any other concern identified in the repair history for the subject [Vehicle].” (Komely Decl., Exh. H.) Thus, presumably, the two categories of requests incorporate each other and are repetitive. The Court also determines that Plaintiff’s request for any databases in Defendant’s possession in Nos. 19 and 25 is unduly burdensome.

As to RFPs Nos. 72-78, Defendant argues that it has produced the bulletins and safety recall, which incorporate the culmination of Defendant’s research, investigation, and analysis and demonstrate Defendant’s knowledge of the underlying concerns. Plaintiff does not dispute that Defendant produced said documents. Accordingly, the Court finds that further responses are unwarranted.

The

motion, then, is denied in part as to requests Nos. 72-78, and granted in part as to requests Nos. 16-19 and 22-25 (with the limitations set forth above). Defendant is to provide further, Code-compliant responses to Nos. 16-19 and 22-25 within 20 days from the notice of the ruling.

[FN1] The term is denied as: "such

defects which result in symptoms including but not limited to soft rocker panel; vibration noise coming from alarm installation area; windows making clunk noise; buzzing noise heard from dashboard at freeway speeds; buzzing noise heard from dashboard upon acceleration; loose-like noise coming from alarm installation area while driving; rattling noise behind audio display when driving; buzzing noise behind audio display when driving; rattling noise behind kick panel when driving; buzzing noise behind kick panel when driving; buzzing noise at center dash; the required application of technical service bulletin (TSB) 21-063; gap between center display unit and dashboard; the required application of wool felt tap to the bottom of the center display unit; humming noise coming from around infotainment unit; loose speaker behind infotainment unit; the premature required replacement of the speaker behind the infotainment unit; the required addition of padding to the dashboard; indentations on the dashboard; premature wear of the dashboard panel; premature set in fatigue of the dashboard panel; the premature required replacement of the dashboard upper panel assembly; rattling noise coming from alarm system area; rattle type noise coming from the dashboard; rattling noise coming from the steering wheel area; intermittent ticking noise coming from the panel under the steering wheel assembly; the premature required replacement of the left lower panel beneath the steering wheel; finish peeling from the headlamp; finish not smooth where the headlamp meets the quarter panel; the premature required replacement of the headlamp assembly; vibration at center console upon acceleration; buzzing noise coming from center console upon acceleration; vibration at glove box upon acceleration; buzzing noise coming from glove box upon acceleration; the required application of EPT tape to the bottom of the infotainment screen; deformed lower instrument panel cover; distorted lower instrument panel cover; the premature required replacement of the lower instrument panel; the dislodging of the emergency button; the premature required reinstallation of the emergency button; damaged panels beside dash display; loose glovebox; and any other concern identified in the repair history for the subject 2022 Honda Civic Sedan; Vehicle Identification Number 2HGFE1F98NH311204."(Kornely Decl., Exh. H.)

[FN2] The term is defined as: "such defects which result in symptoms including but not limited to noise when reversing; noise when pressing brakes; the required application of Safety Recall Campaign 23-085; clunking noise when turning; popping noise when turning; steering wheel stiff when turning; binding noise when turning; and any other concern identified in the repair history for the subject 2022 Honda Civic Sedan; Vehicle Identification Number 2HGFE1F98NH311204." (Ibid.)